rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m. on April 5, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on July 5, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on July 5, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The land has been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. It will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on July 5, 1958.

5. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the land shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 28, 1958.

[F. R. Doc. 58-1667; Filed, Mar. 5, 1958; 8:47 a. m.]

[Public Land Order 1594]

[994960]

WASHINGTON

REVOKING EXECUTIVE ORDER NO. 3819 OF APRIL 9, 1923, WHICH WITHDREW LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 3819 of April 9, 1923, withdrawing the following described lands in the State of Washington for classification is hereby revoked:

WILLAMETTE MERIDIAN

T. 23 N., R. 9 E.,
Sec. 26, Lots 1, 2, 3, 4, E½NW¼, NE¼SW¼, and NW¼SE¼.
T. 20 N., R. 13 E.,
Sec. 14, S½SW¼ and SW¼SE¼;
Sec. 28, S½SW¼;
Sec. 34, NE¼ and S½.
T. 20 N., R. 14 E.,
Sec. 4, Lots 1, 3 and 4, SW¼NW¼, S½SW¼;
Sec. 6;
Sec. 8, N½ and SW¼;
Sec. 30, S½;
Sec. 32, SW¼NE¼, NW¼, and S½.
T. 21 N., R. 15 E.,
Sec. 20, W½NE¼.
T. 21 N., R. 16 E.,
Sec. 4, Lots 1 and 2.
T. 20 N., R. 17 E.,
Sec. 4, NE¼;
Sec. 8, E½E½;
Sec. 10, N½NE¼, SW¼NE¼, and SE¼SE¼;
Sec. 12, N½;
Sec. 15, W½W½NE¼ and E½NE¼NW¼.
T. 23 N., R. 18 E.,
Sec. 4, SE¼SW¼;
Sec. 6, NW¼;
Sec. 20, S½SW¼;
Sec. 24, E½NE¼ and S½.
T. 24 N., R. 18 E.,
Sec. 30, Lots 3 and 4, SE¼SW¼ and NE¼SE¼.
T. 20 N., R. 19 E.,
Sec. 6, Lots 1, 2, 6 and 7, SE¼NE¼, SE¼SW¼;
Sec. 8, NW¼;
Sec. 20, W½NE¼;
Sec. 32, N½NW¼.
T. 22 N., R. 19 E.,
Sec. 4, SW¼;
Sec. 6, Lot 3;
Sec. 8;
Sec. 10, N½, NW¼SW¼, N½SE¼, SE¼SE¼;
Sec. 14, N½NE¼; N½NW¼; SE¼NW¼, W½SE¼;
Sec. 18, Lots 1 and 2, E½NE¼, SW¼;
Sec. 24, NE¼;
Sec. 28, SW¼NE¼, SW¼, NW¼SE¼, S½SE¼;
Sec. 30, SW¼;
Sec. 32;
Sec. 34, W½E½ and W½.
T. 23, N., R. 19 E.,
Sec. 30, Lots 1 and 2, E½NE¼, SW¼, N½SE¼, and SW¼SE¼;
Sec. 32, NE¼, NE¼SW¼, N½SE¼;
Sec. 34, NW¼NE¼, N½NW¼, SW¼NW¼, and S½.
T. 27 N., R. 19 E.,
Sec. 22, W½SW¼;
Sec. 24, NW¼;
Sec. 26, E½NE¼, N½NW¼, NE¼SW¼, and SE¼.
T. 20 N., R. 20 E.,
Sec. 2, Lots 1 and 4, SE¼NE¼, SW¼NW¼, S½;
Sec. 4, NW¼SW¼, S½SW¼, SE¼SE¼;
Sec. 6;
Sec. 12, N½NE¼, W½NW¼, and S½.
T. 21 N., R. 20 E.,
Sec. 26, SE¼SW¼, SE¼;
Sec. 30, NW¼ and S½.
T. 25 N., R. 20 E.,
Sec. 6, E½;
Sec. 8, SE¼NE¼, N½NW¼, and S½.
T. 26 N., R. 20 E.,
Sec. 4, W½ of Lot 3, SE¼SE¼NW¼, W½NW¼, S½SW¼, NW¼SE¼;
Sec. 6, Lots 6 and 7, SE¼SW¼ and SW¼SE¼;
Sec. 8, E½SW¼, W½SE¼ and W½SW¼;
Sec. 10, W½NW¼ and N½SE¼;
Sec. 12, S½;
Sec. 22, E½, W½W½;
Sec. 24, E½ and SW¼;
Sec. 26, W½NE¼, NW¼, N½SW¼, SW¼SW¼, SE¼SE¼;
Sec. 32, NE¼NE¼, NE¼SE¼ and S½SE¼.
T. 27 N., R. 20 E.,
Sec. 21, NW¼;
Sec. 26, SW¼SE¼;
Sec. 30;
Sec. 32, N½NE¼, SW¼NE¼, W½, and NW¼SE¼.

The areas described aggregate approximately 18,000 acres.

2. Much of the land has been patented or included in national forests. The lands restored include but are not necessarily limited to the following, aggregating about 1,440 acres.

WILLAMETTE MERIDIAN

T. 23 N., R. 9 E.,
Sec. 26, Lots 1, 2, 3 and 4, E½NW¼, NE¼SW¼, NW¼SE¼.
T. 27 N., R. 19 E.,
Sec. 22, W½SW¼;
Sec. 24, NW¼;
Sec. 26, Lots 1 to 14, inclusive, SE¼SE¼.
T. 25 N., R. 20 E.,
Sec. 6, E½;
Sec. 8, SE¼NE¼, N½NW¼, N½NE¼NW¼SW¼, NW¼NW¼SW¼, NW¼SW¼NW¼SW¼, S½SE¼NW¼SW¼, NE¼NE¼SW¼, S½NE¼SW¼, S½NW¼SW¼SW¼, SW¼SW¼SW¼, E½SW¼SW¼, SE¼SW¼, SE¼.

(A complete and accurate statement of the status of any parcel of land affected by this order may be obtained from the Land Office Manager referred to in Paragraph 8 of this order.)

The areas described aggregate approximately 1,440 acres.

3. The lands opened by this order are forested lands on the lower slopes of the Cascade Mountain Range, and are primarily valuable for sustained-yield timber production.

4. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the Act of September 27,

1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m., on April 5, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on July 5, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on July 5, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

6. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

7. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals beginning at 10:00 a. m. on July 5, 1958.

8. Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 28, 1958.

[F. R. Doc. 58-1663; Filed, Mar. 5, 1958; 8:47 a. m.]

[Public Land Order 1595]

[Sacramento 041249]

CALIFORNIA

PARTIALLY REVOKING EXECUTIVE ORDER OF JANUARY 3, 1917, WHICH CREATED PUBLIC WATER RESERVE NO. 41, CALIFORNIA NO. 6

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) as amended, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of January 3, 1917, withdrawing public lands in California for Public Water Reserve No. 41, California No. 6, is hereby revoked so far as it affects the following-described lands:

MOUNT DIABLO MERIDIAN

T. 9 N., R. 21 E.,
Sec. 14, lot 6.

The area described contains 37.63 acres.

The land is located in extreme eastern Alpine County, California, approximately 9 airline miles southeast of Markleeville, California. The area, accessible only by foot across private land, consists of a steeply sloping, westerly facing hill. Vegetation is of the northern desert shrub type, with sage brush, bitter brush, pinon and juniper.

This order shall not become effective to change the status of the described lands until 10:00 a. m. on April 5, 1958. At that time the said lands shall become subject to application, petition, location and selection under the applicable public-land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference right filing period for veterans and others entitled to preference under the Act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended.

The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals under the United States mining laws. They will be open to location for nonmetalliferous minerals beginning at 10:00 a. m. on July 5, 1958. Such locations made prior to that date and hour are invalid.

Information showing the periods during which and the conditions under which veterans and others may file applications for these lands may be obtained from the Manager, Land Office, Bureau of Land Management, Sacramento, California.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 28, 1958.

[F. R. Doc. 58-1669; Filed, Mar. 5, 1958; 8:47 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 12262]

[Rules Amdt. 3-108]

PART 3—RADIO BROADCAST SERVICES

TELEVISION BROADCAST STATIONS; GALVESTON-HOUSTON, TEXAS; TABLE OF ASSIGNMENTS

In the matter of amendment of § 3.606 *Table of assignments*, Television Broadcast Stations (Galveston-Houston, Texas); Docket No. 12262, Rules Amdt. 3-108.

The offset carrier designation for television Channel *47— at Galveston, Texas, in Paragraph 7 of the Report and Order (FCC 58-162, Mimeo. No. 54885) released in the above-captioned matter on February 24, 1958, was inadvertently omitted. The channel should read: "*47—" instead of "*47".

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies secs. 301, 303, 307, 48 Stat. 1081, 1082, 1083; 47 U. S. C. 301, 303, 307)

Released: March 3, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 58-1705; Filed, Mar. 5, 1958; 8:54 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 33—CENTRAL REGION

SUBPART—TEWAUKON NATIONAL WILDLIFE REFUGE, NORTH DAKOTA

FISHING

Basis and purpose. Pursuant to the authority conferred upon me by 50 CFR 18.12 and by Commissioner's Order 4 (22 F. R. 8126), I have determined that winter sport fishing may be permitted on certain waters of the Tewaukon National Wildlife Refuge, North Dakota, without interfering with the primary purpose of the area. Accordingly, a new subpart and center headnote, as set forth above, and § 33.255, reading as follows, are added:

§ 33.255 *Winter fishing permitted.* Subject to the applicable provisions contained in Parts 18 and 21 of this chapter, sport or noncommercial fishing through the ice is permitted during the daylight hours of the period from December 15 to March 15, inclusive, in accordance with the laws of the State of North Dakota in the waters of White Lake within the Tewaukon National Wildlife Refuge.

(Sec. 10, 45 Stat. 1224, as amended; 16 U. S. C. 715i)

Since the foregoing amendments involve public property and have the effect of relieving restrictions applicable to the Tewaukon National Wildlife Refuge, notice and public procedure thereon are not required, and they shall become effective immediately upon publication in the FEDERAL REGISTER (60 Stat. 238; 5 U. S. C. 1003).

Issued at Washington, D. C., and dated February 28, 1958.

A. V. TUNISON,
Acting Director,
Bureau of Sport Fisheries and Wildlife.

[F. R. Doc. 58-1665; Filed, Mar. 5, 1958; 8:46 a. m.]

PART 33—CENTRAL REGION

SUBPART—VALENTINE NATIONAL WILDLIFE REFUGE, NEBRASKA

FISHING

Basis and purpose. Pursuant to the authority conferred upon me by 50 CFR 18.12 and by Commissioner's Order 4 (22 F. R. 8126), I have determined that a modification of the regulation permitting sport fishing on certain waters of the Valentine National Wildlife Refuge, Nebraska, is essential to avoid interference with the primary purpose of the area. Accordingly, §§ 33.341 and 33.343 are revised to read as follows:

§ 33.341 *Sport fishing permitted.* Subject to the applicable provisions contained in Parts 18 and 21 of this chapter, sport or noncommercial fishing is permitted during the daylight hours in accordance with the laws of the State of